

BESS MORATORIA

WHAT:	A local law or ordinance that temporarily suspends a landowners right to obtain development approvals or build a project, i.e., a temporary restriction on development to maintain the status quo.
LEGAL STANDARD:	Courts have articulated a three-pronged test: 1. The municipality acted in response to a <i>dire necessity</i>. 2. The municipality's action is reasonably calculated to alleviate or prevent a <i>crisis condition</i>. 3. The municipality is presently taking steps to rectify the problem. Immediate health and safety problems must be at issue. Think of a moratorium as an emergency measure.
IMPERMISSIBLE REASONS:	• Delay development in the hopes that it will go away. • The neighbors oppose the development. • The development is viewed as "unsafe". "Perception" in the absence of proof is not a valid basis to justify a moratorium, particularly where the overwhelming scientific evidence is to the contrary. <u>Cellular Telephone Co. v. Village of Tarrytown</u>, 209 A.D.2d 57, 67 (2d Dept. 1995).
WHAT TO DO:	Educate, Discuss, Engage. Confirm policies of the Comprehensive Plan - most plans include policies to address energy and climate change. Assist the municipality with developing new zoning controls that properly regulate BESS.